

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S NOTICE REGARDING RESPONSE TO PROPOSED
FINAL JUDGMENT AND RESERVATION OF APPELLATE RIGHTS**

COMES NOW Defendant, Marc Moszkowski, pro se, and submits this Notice to clarify the procedural status regarding the proposed Final Judgment submitted by Plaintiffs’ counsel and to preserve all appellate and constitutional rights. In support, Defendant states:

1. On June 26, 2025, the Judicial Assistant to the Honorable Judge Jan Shackelford instructed counsel for Plaintiff to submit a proposed Final Judgment “in Word format,” to be sent first to Defendant for review, and that Defendant “shall submit a red-lined version ... with alternative language ... within 10 days.”

2. On the evening of July 1, 2025, Plaintiffs' counsel transmitted the proposed Final Judgment to Defendant via email and stated his intent to submit the judgment to the Court "by close of business tomorrow," July 2, 2025.
3. The implication that Defendant must respond within 24 hours directly contradicts the clear 10-day review period granted by the Court's directive. Plaintiffs' counsel's email imposes a deadline of his own making and misrepresents the procedural framework.
4. The proposed Final Judgment spans multiple counts, rewrites the factual record, and asserts legal ownership and liability in terms that contradict the evidentiary filings in the record. Defendant has submitted over 150 pleadings and produced more than 4,000 pages of documents, none of which are meaningfully reflected in the proposed judgment.
5. Given the scope of misrepresentation and the volume of underlying documentation, it is categorically impossible to redline or rebut the proposed judgment within a 24-hour period.
6. Defendant affirms his intent to submit a formal alternative version of the Final Judgment or a redlined rebuttal pursuant to the full 10-

day period ending on or about July 11, 2025, as provided by the Court's directive.

WHEREFORE, Defendant respectfully requests that the Court disregard any suggestion that silence or non-response within one day constitutes acquiescence, and that the Court consider Defendant's forthcoming response timely, valid, and in full compliance with the procedural schedule set forth by the Court itself.

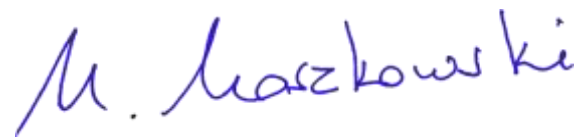
Respectfully submitted this 2nd day of July, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 2nd day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Maczkowski